

## 24PR00933 1,2. Estate of John Scott Bulger

County: sonoma

Division: Probate

Hearing date: 2026-08-14

Motion: Waiver of Account and Report: Other

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1,2. Estate of John Scott Bulger

24PR00933

Waiver of Account and Report: Other

Tentative Ruling: NO APPEARANCES REQUIRED. As to the Probate Code section 850 petition, the notice of hearing originally issued set this matter for hearing on June 5, 2026. Prior to that time, the lender on the property was not served. The Court's ruling of June 5, 2026, stated:

NO APPEARANCES REQUIRED. The Petition filed 4/10/26 is CONTINUED to 7/17/26 at 9:30 a.m. in Dept. 12 for the reasons set forth below. The asset at issue in this Heggstad petition is real property. The petition indicates that the real property is encumbered. If the real estate at issue in a Probate Code section 850 petition is encumbered, the interest holder is entitled to notice as provided by California Probate Code (Prob C)§851(a)(2). The petitioner should note that Prob C§851(a) requires service of the notice of hearing and a copy of the petition in the manner provided by California Code of Civil Procedure §413.10 et seq. (i.e. in the manner of a summons.) The Court may not shorten the time for giving notice. Prob C §851(d). There is presently no proof of service filed establishing the required notice has been given. This matter is continued to allow the petitioner another opportunity to give code compliant notice and file proof of service after having done so.

After the above ruling of the Court was adopted, a new Notice of Hearing setting the matter for August 14, 2026 was filed. Petitioner Costa and objector then filed a stipulation to continue the July 17, 2026 date to August 14, 2026. Petitioner Costa has now filed a proof of personal service of the hearing on the lender and the Court finds the notice timely. Any objection by the lender shall be made on or before the date and time of the hearing or be waived.

On the merits of the Probate Code section 850 petition, the Court is in receipt of a single statement of issues from objector. The information provided indicates the parties have met and conferred but have not yet reached an agreement. A request to continue the matter for continued efforts at settlement is made. The Probate Code section 850 petition is therefore CONTINUED to September 24, 2026, at 9:30 a.m. in Dept. 12. The parties are ordered to meet and confer and file statements of issues in accordance with the local rules.

The petition for final distribution on waiver of account shall trail to the same day, pending the outcome of the section 850 petition.